

CITY GOVERNMENT, PUBLIC SAFETY

Before Harlem Blaze that Killed Journalist Fazil Khan, Neighbors Complained About E-Bike Batteries

Fire Marshal reports obtained by THE CITY suggest landlord and city agencies had ignored pleas to intervene — and that off-brand batteries from Amazon and eBay are a constant in fatal bike and scooter fires.

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REPUBLIC



Journalist Fazil Khan was killed in an electric battery–sparked fire at his Hamilton Heights building on St. Nicholas Place, Feb. 26, 2024.
Credit: Ben Fractenberg/THE CITY

In the weeks before a [raging fire](#) killed journalist Fazil Khan, tenants throughout his building complained to the landlord that men living in the unit where the fire broke out had been routinely charging e-bike batteries inside their apartment, an investigation by THE CITY has found.

One former tenant of the six-story building at 2 St. Nicholas Place in Harlem told FDNY investigators that they even filed a formal complaint about the e-bikes via 311. That complaint appears to have been assigned to the city Department of Transportation.

But there is no evidence that either the landlord or any city agency did anything in response to the 311 call, or any of the other complaints.

The FDNY determined the blaze that killed Khan, 27, in the early hours of Feb. 23 and injured more than 20 others was caused by an exploding e-bike battery. The victims found themselves choking on thick, black smoke that instantly spread throughout the building.

Details of the circumstances leading up to this deadly fire emerge in one of a dozen FDNY Fire Marshal reports on e-bike lithium-ion battery fires since January 2023 obtained by THE CITY via the Freedom of Information Law. The events depicted in these reports are terrifyingly similar: tenants awaken in the early morning hours to a big bang, followed immediately by smoke filling hallways and blocking escape routes.

The reports make clear the cause: batteries that aren't safety certified, purchased online or in retail stores, charging inside residential buildings in an unsafe manner. Often they are positioned near exit doorways, blocking escape. In each case, the resultant fire rips instantaneously through the building, expanding from floor to floor.

Eliminating that potential for disaster by prohibiting the sale of unsafe batteries for micromobility devices remains an unmet goal. A bill to do just that [sponsored by Congressman Ritchie Torres](#) (D-The Bronx) passed the House this year. Language similar to Torres' bill was placed in the bipartisan budget bill by Senate Majority Leader Chuck Schumer (D-NY), but was later stripped out by Senate and House leadership to get a compromised bill passed after President-elect Donald Trump objected to the original bill.

FDNY data show the number of fatalities from e-bike battery fires dropped to five this year from 18 last year. But the number of fires caused by e-bike batteries in 2024 (270) surpassed last year's total (268) as of Dec. 27.

A review of the fire marshal reports shows just how dangerous these unsafe batteries charging inside residential buildings can be.

The fire at 2 St. Nicholas Place stemmed from a potential disaster hiding in plain sight. According to the fire marshal's report, multiple tenants were aware the residents in Apartment 33 were bringing e-bike batteries into the apartment. Video from the deli across the street captured this, and one tenant says they saw the building superintendent watching as batteries were brought in.

At least six separate tenants told fire marshals they'd made complaints to the building's management about this. One said the situation was obvious, with multiple e-bikes used for both work and pleasure chained to the fence outside the building.



27-year-old journalist Fazil Khan was killed in a residential building fire sparked by a lithium-ion battery. Credit: Bianca Pallaro/THE CITY

One tenant summarized the situation to the fire marshal by stating that an apparent “increase of e-bikes and the e-batteries was a topic of concern for the tenants and it was expressed to the building management months ago and there has been no follow up to address the tenants e-bike concerns.”

Sam Klein, listed in city records as head officer of the building’s owner, Hudson Valley King LLC, did not respond to THE CITY’s calls or emails requesting comment.

The City of New York learned of the potential danger before the fire, according to the fire marshal’s report. During the post-fire investigation, a former 2 St. Nicholas Place tenant emailed the fire marshal to state that they had “made a formal complaint via 311 regarding e-bikes at the building,” supplying the marshal with the specific DOT case number assigned by the dispatcher, the marshal’s report states.

Last year Mayor Eric Adams [urged](#) New Yorkers to call 311 if they believed e-bike batteries were being unsafely charged in residential buildings.

On Friday THE CITY reached out to the mayor’s press office and the Department of Transportation seeking to learn what, if anything, resulted from this 311 complaint. On Monday DOT spokesperson Vincent Barone said the 311 complaint cited by the marshal “involved a request of bike racks to be installed on city property.”

Barone did not provide the text of the complaint or say when it was filed, but said the agency is still “reviewing the request for additional bike parking in the area, and we close out requests once they are on our list of

locations to review.” He added, “One loss of life due to e-battery charging is too many, and our thoughts are with Fazil Khan’s family, colleagues, and loved ones.”

The marshal also managed to interview one of the six men living in Apartment 33 where the fire broke out. The identities of all six tenants of the unit are known to the FDNY, but the names and all identifying information about them were blacked out in the report released to THE CITY. It’s not clear which food delivery apps they worked for, but the tenant did confirm that they regularly charged batteries in their living room and that two batteries were charging when the fire broke out.

The Apartment 33 tenant also made clear the residents of the unit simply escaped once they realized a fire had broken out. The tenant described awakening to the smell of smoke, rousing his roommates and fleeing, leaving the door wide open — a common mistake that allowed deadly smoke to quickly spread throughout the upper floors.

There’s no record of that tenant calling 911.

Khan, a data journalist who worked for The [Hechinger Report](#) and contributed to THE CITY, lived one floor above Apartment 33 in Apartment 45. The circumstances of his last moments are not clear, but the city medical examiner ruled the cause of his death as thermal injuries and smoke inhalation.

Pattern of Deadly Blazes

A similar confluence of dangerous conditions preceded an [Aug. 11, 2023 fire](#) at 98-01 101st Ave. in Ozone Park, Queens.

That Friday afternoon, a \$200 lithium-ion e-bike battery purchased on eBay exploded in the first-floor stairwell of a two-story apartment building. In seconds, thick black smoke filled the upper floors where one tenant was taking a nap.



A two story building is gutted with visible fire damage on the outer brick. The windows and door frames look like they have just been replaced while the front entrance remains under construction without a door.

Damage from lithium-ion e-bike battery fire, 98-01 101st Ave. in Ozone Park, Queens. Dec 30, 2024 Credit: Alex Krales/THE CITY

The napping tenant awoke to the sound of loud pops, smelled and tasted smoke, then saw smoke pouring into his apartment under the door, according to the fire marshal's report. He opened his window and leaned out to see the woman from the adjoining unit hanging out her window, choking. He dialed 911, and the FDNY showed up in minutes.

A firefighter who arrived first entered the stairwell and saw what he thought was a pile of burning trash at the only exit from the second floor. He hit the blaze with a fire extinguisher, but the fire took off, spreading rapidly.

The woman hanging out the window was safely evacuated via a ladder, and then fire fighters knocked down the fire and worked their way through the apartments.

On the second floor they found the body of 93-year-old Kam Mei Koo. Her son, Jack, told the FDNY he owned the e-bike and had bought the battery online. It was sitting next to two other older batteries charging in the stairwell while he was out doing errands. When he returned, he realized what had happened.

A calamitous April 10, 2023, fire at 25-71 46th St. in Astoria, Queens, that [killed](#) a 7-year-old girl and her 19-year-old brother, seemed to have every dangerous element in play, starting with a charger purchased from Amazon that was not compatible with the e-scooter battery being charged.

The charger sat in the first-floor stairwell and was plugged into an extension cord that ran up the stairs to an outlet in a second-floor unit. When the fire erupted, it blocked the only egress for the second floor. A tenant described being awakened by a loud boom, opening their apartment door to see fire at the bottom of the staircase where the scooter was plugged in.

In minutes the fire raged throughout the building, then spread to the house next door. One second floor tenant reported jumping from a kitchen window, the other from their bedroom window.

Fire marshals later learned that the scooter was purchased from a Queens Mall store, while the charger arrived via Amazon. Marshals later found the Queens Mall store selling unsafe batteries with fake UL Solutions stickers affixed to them.

Amazon and eBay did not immediately respond to requests for comment from THE CITY.

“We want people to purchase chargers that are compatible with the devices that they purchased. Do not buy the cheapest option,” Chief Fire Marshal Daniel Flynn said at a press briefing after the fire. “Make sure that what you buy is compatible with the device.”

A [similar scenario](#) played out at daybreak on June 27 at 416 Avenue M in Midwood, Brooklyn, with an e-bike being charged at the bottom of the stairs via an extension cord run up the stairs to an outlet in a second floor apartment, according to the marshal’s report. Again the sole egress was blocked. This time a 30-year-old tenant who owned the bike was critically injured and later died.

In that case, tenants told fire marshals the owner started charging his e-moped indoors after someone tried to steal it when it was parked outside. The owner at first tried to charge it during the daytime, but had recently begun charging it overnight, the tenants told the marshal.

Side Businesses With Deadly Consequences

In some cases the scope of the disaster is greatly exacerbated because a tenant operates a business in their apartment repairing these batteries — a particularly dangerous circumstance because when one battery explodes, the fire often jumps to other batteries.

Following an [early-morning fire](#) at 14 Goodwin Place in Bushwick, Brooklyn, that killed a 67-year-old woman, the FDNY discovered 50 batteries inside the apartment where the fire started. The tenant, who was not at home at the time, had a repair business and was charging multiple unattended batteries, according to the fire marshal’s report. The FDNY found batteries everywhere — in the tenant’s first floor unit, in the basement, in the backyard.

One tenant described hearing a “popping sound...like a gunshot,” then looking into the hallway to find the entire back of the building engulfed in what they described as “blue/purple color” flames. A second resident told the fire marshal they awoke but then passed out, apparently from thick black smoke that quickly filled multiple apartments. That resident was later evacuated by the FDNY.

Fire officials have voiced particular concern about batteries that are modified to increase their power, which makes them more volatile.

The explosiveness of faulty batteries was made abundantly clear during and after the fatal early-morning fire that erupted June 20, 2023, in a first-floor storefront called HQ E-Bike Repair at 80 Madison St. in Chinatown.



A pile of charred micro mobility vehicles sat near the scene of a deadly e-bike repair shop fire on Madison Street in Chinatown, June 20, 2023. Credit: Ben Fractenberg/THE CITY

What marshals believe were several older batteries stored on wooden shelves in the front of the store immolated around 1:30 a.m. in a store filled with e-bikes and batteries. It quickly spread to three floors of residential apartments above the store, killing four tenants who could not escape the inferno.

The fire marshal report asserts that the store owner was replacing lithium-ion batteries on e-bikes with non-factory batteries, and recovered 1,260 batteries inside the store, enough to fill 20 55-gallon barrels. Removing them after the fire, however, became a dangerous affair unto itself.

After an FDNY hazardous materials unit carefully removed all the batteries from the shop and stored them in steel drums, they remained, it soon became clear, quite volatile.

Two days after the conflagration, a small fire erupted in front of the building. The next day “spontaneous re-ignition” occurred in one of the barrels that required multiple FDNY units to respond. A day later it happened again in another barrel stored in the bed of the disposal company’s truck, triggering what the department called “thermal runaway.” The disposal company was told not to overpack the batteries into the barrels and ensure there were ventilation holes, the fire marshal’s report stated.

The fire on Madison Street followed prior enforcement activities by the FDNY, which had cited HQ E-Bike Repair in 2022 for using an extension cord to charge batteries. FDNY inspectors returned in May 2023, just weeks before the fire, to perform a “surveillance only” visit that, as THE CITY [reported](#), did not include examining batteries for sale there to see if they were safety certified, as required by law in New York City.

Six weeks later disaster followed.

